
Journal

2015 SBLR 572

Court

SINDH HIGH COURT

Date

2017-01-09

Appeal No.

CP NO. D-3570 OF 2012 & CP NO. D-3326 OF 2012

Judge

MR. JUSTICE SYED HASAN AZHAR RIZVI & MR. JUSTICE AZIZ-UR-REHMDN

Parties

IMLIAZ ALI & ANOTHER (PETITIONERS) VERSUS PROVINCE OF SINDH & OTHERS
RESPONDENTS

Lawyers

M/S SALAHUDDIN KHAN GANDAPUR & SHAIKH ALTAF & MR. ABDUL SALAM MEMON,
ADVOCATES FOR PETITIONERSMR. ABDUL JALIL ZUBEDI ADVOCATE FOR
RESPONDENTSLEARNED AAG A/W AMIR AHMED KEHAR, FOCAL PERSON OF LAW
DEPARTMENT ON BEHALF OF LAW-SECRETARY.

Statutes

SINDH CRIMINAL PROSECUTION SERVICES (CONSTITUTION FUNCTIONS AND POWERS)
ORDINANCE 2006 (SINDH ORDINANCE XIX 2006) - SUB SECTION 4 OF SECTION S
CONSTITUTION OF ISLAMIC REPUBLIC OF PAKISTAN, 1973 - ARTICLE 25 CONSTITUTION
OF ISLAMIC REPUBLIC OF PAKISTAN, 1973 - ARTICLE 4 SINDH CRIMINAL PROSECUTION
SERVICES [CONSTITUTION, FUNCTIONS AND POWERS] ORDINANCE, 2006 [SINDH
ORDINANCE XIX, 2006-1ST PART OF - SUB-SECTION 4 OF SECTION 8-A

Judgment

JUDGMENT .

AZIZ-UR-REHMAN J., Through these Constitution Petitions, the Petitioners are seeking "mteralia a prayer for direction to the Respondents for inducting them as Deputy District Public Prosecutors [PBS-18] as per one time option in accordance with proviso to Section 8 [4] of Act, 2009 published in the Gazette Notification dated 30.04.2010. The common prayers sought in the above petitions read as follows:- a) This Honourable Court may be pleased to direct the Respondents to induct the petitioners as Deputy District Public Prosecutor (BPS-18) as per one time option in view of proviso to Section 8(4) of an Act 2009, published in the Gazette Notification dated 3 April 2010, b) To direct the respondents to allow all the allowances/privileges to the petitioners / Deputy District Attorney BPS-18, as granted to the newly inducted Deputy District Public Prosecutors BPS-18, in view of judgment of Honourable Supreme Court of Pakistan, and keep equality in between them. , .

c) To declare the act of respondents of not indulging the petitioners in the notification dated 13.09.2012, is discriminatory.

d) To restrain the respondents from filling the post of Deputy District Public Prosecutor ignoring the provisions of Act 2009, published in the Gazette Notification dated 30thApril 2010. " e) To award the cost of this petition.

f) , Any other equitable relief deemed fit and proper may'be granted to the petitioner.

2. The brief relevant facts in the background, as they appear, from the record are:- 3. Per averments, the Petitioners in C.P.No.D-3570/2032 pintiaz Ali & another v. Province of Sindh & another] are serving in their capacity as Deputy District Attorney [PBS-18] and incharge District Attorneys in their own scale, having other benefits of BPS- 19. At the relevant time, the Petitioner No.1 was holding post at Karachi West, while Petitioner No.2 in C.P.No.D-3570/2012 was incharge as District Attorney at District Thatta. The Petitioners as stated, were initially appointed as Deputy District Attorneys [BPS-17] through Public Service Commission, however, the post of Deputy District Attorneys [BPS-17] was later-on upgraded by Government of Sindh from PBS-17 to BPS-18 sometime in July, 2005.

4. The Petitioner in C.P.No.D-3326/2012 [Syed Muzafar Ali Shah v. Province of Sind & 4 others], was initially appointed as Assistant Public Prosecutor and Assistant Government Pleader. However, subsequently in the year, 1996, the service of the Petitioner was regularized by way of renaming the designation as Deputy District Attorney [BPS-17]. Later-on, the Petitioner viz Syed Muzafar Ali Shah, as stated was promoted as District Attorney in BPS-18. According to the Petitioner, thereafter, the post was up-granted to the post of District Attorney from BPS-18 to BPS-19.

5. Per common stand taken by. the Petitioners, the Government of Sindh vide The Sindh. Criminal Prosecution Service [Constitution, Functions and Powers] Ordinance, 2006 [Sindh Ordinance No.XIX of 2006], was pleased to establish Criminal Prosecution Service in the Province of Sindh.

i 6. The Respondents thus assigned additional responsibilities to the Petitioners and other District Attorneys to perform their duties also as District Public Prosecutors in their own pay scale and grade. The Sindh Criminal Prosecution Service [Constitution, Functions and Powers] Bill,

2009, was passed by the Sindh Assembly on 29th March 2010 and thereafter was assented to by the Governor of Sindh on 24th April, 2010. Consequently the same was published in the Sindh Government Gazette vide No.PAS/Legis B-23/2009 dated 30th April 2010, now called the Sindh Criminal Prosecution Service [Constitution, Functions and Powers] Act, 2009 [Sindh Act No.IX of 2010], 7. Per provisions of Sindh Ordinance No.XIX of 2006, the Respondents were pleased to call for one time option from the Deputy District Attorneys in accordance with proviso to Subsection 4 of Section 8 of the said Ordinance, 2006 [Sindh Ordinance' XIX of 2006] to join the Criminal Prosecution Department, as District Public Prosecutors in their same grades [PBS-18/PBS-19] with additional allowance for the newly created post. For such new created posts the Petitioners, admittedly had opted for joining the same, amongst others.

8. According to the Petitioners, the Government of Sindh nonetheless, published an article in newspapers, of course, suddenly whereby, the Petitioners amongst others were invited for their tests/interview. The calling of the Petitioners amongst others for tests/interview, per Petitioners version, was in violation of the provision of Sub-section 4 of Section 8 of Act, 2009 [Sindh Act No. IX of 2010], the Petitioners, however, in response thereto did appear before the Selection Committee and recorded (heir protest by making it clear, -that such tests/interview are being held in violation of Section 8[4] of Act, 2009. The petitioners amongst others nonetheless, did participate in the test/interview before the Selection Committee but remained un-succeeded.

According to the Petitioners, the newly created posts were to be filled-up by the persons having opted for such posts. The remaining posts, if any, were thereafter, to be filled through new appointments.

9. The posts of Deputy District Attorney [existing post] and Deputy District Public Prosecutor [newly established post], per assertions, are same and of equivalent grade i.e. PBS-18. The newly established posts, however, are different only to the extent of 'additional allowance' and 'privilege*'; The successful incumbents only could be benefited therefrom while, the Petitioners as being senior employees of Law Department on account of being un-successful could not be able to get benefit from such 'additional allowances' and 'privileges'. In view of this position, per averment, the Petitioners as claimed, stood discriminated, on account of not benefiting from the additional allowance and privileges. Successful incumbents, no doubt, on the other hand, were to be benefited from the additional allowance/privileges.

10. Under circumstances, some of the un-successful Deputy District Attorneys [not the Petitioners] and District Attorneys upon feeling aggrieved, filed various Constitutional Petitions before this court. The same Constitutional Petitions, however, upon hearing were dismissed in limine through judgment dated 6th March, 2009 passed by the learned Division Bench of this court.

11. On dismissal of their petitions, some of the Petitioners assailed the judgment passed by the Division Bench of this court, before the Hon'ble Supreme Court of Pakistan through filing of CPLAs No.365-K of 2009 and 366-K of 2009. Upon conversion of CPLAs into Appeals No.K-146/2009 [Syed Munawar Sultan & 5 others v. Province of Sindh & others] and K-147 of 2009 [Qazi Mohammad Ishaq Chisti & 2 others v. Province of Sindh & others] the same was allowed through order dated 03.09.2012 passed by the Hon'ble Supreme Court of Pakistan with direction to the Government to issue Notification of the Appellants in the aforesaid appeals in the manner as has been done in the cases of other un-successful officers within two weeks from the date of order i.e. 28th August, 2012. It is worth to note that the benefit of 'additional allowance' and 'privileges' was extended only to those Petitioners who were before the High Court and upon dismissal their petitions had filed CPLAs before the Hon'ble Supreme Court of Pakistan against the judgment dated 6 March, 2009 passed by the learned Division Bench of this court whereby

their petitions were dismissed in limine.

12. Pursuant to the above order of the Honorable Supreme Court of Pakistan, the present Petitioners i.e. un-successful Deputy District Attorneys and District Attorneys, thereafter preferred their representations through proper channel for seeking equal treatment/induction in the newly established Criminal Prosecution Department. The petitioners were however, ignored by the competent authority as alleged illegally and without any lawful justification.

13. The Petitioners thereupon feeling aggrieved, have approached this court for seeking direction to the Respondents for inducing them as Deputy District Public Prosecutors *[BPS-18/BPS-19] as per 'one tint# option' in view of the proviso to Subsection 4 of Section 8. of the Sindh Ordinance No. XIX of 2006. The act of the Respondents i.e. by excluding their names from the Notification No.SO(G)/CPS/3-48/G7 dated 13.09.2012 [Annexure T to the MoP] besides declaring the same as disOTminatpry, a restraining order has also been sought against the Respondents regarding filling-up the post of Deputy District Public Prosecutors by the Respondents.

14. Upon service, the Respondents filed their para-wise comments. In Parawise comments, the Respondents did not dispute the posting of the Petitioner No.1 [in CP No.3570 of 2012] in his capacity as Deputy District Attorney [D.DAs] in Karachi West. As far as the Petitioner No.2 [viz. Iqbal Ahmed] is concerned, per version of the Respondents, he is no more In Government service.

According to Respondents* no doubt, option was called from Che District Attorneys/Deputy District Attorneys for their induction in the Criminal Prosecution Service Department but such option was subject to passing of tfes candidate in the test/interviews.

No discrimination was caused io the Petitioners, as alleged or otherwise. Article 25 of the Constitution of Islamic Republic of Pakistan, 1973, m alleged, has never been violated by the Respondents of any of. there. ' 15. The learned AAG has also filed a statement dated 6® Mazch, 2014 akmgwith Notification No, SO(C-I)/SGA&CD/4-74/2006 dated October. 2, #2006, Nates for the CHIEF SECRETARY SINDH on im subject Le. option to be invited from the persons already, performing functions of the Prosecutors, Summary for the Chief Minister Sindh, Letter by the Section Officer [General] dated 23rd August, 2007 addressed to the Deputy Secretary [Staff] to the Chief Secretary Government of Sindh, Karachi and a list of 70 candidates i.e. Deputy District Attorneys in BPS-18 qualified/passed in the test/interviews for the post of Deputy District Public Prosecutors.

16. On 13.8.2014, when the above cases came-up before us, we heard Mr. Salahuddin Khan Gandapur a/w Shaikh Altaf, learned counsel for the Petitioners in C.P.No.D-3570/2012, Mr. Abdul Salam Memon learned counsel for the Petitioner in C.P.No.D- 3326/2012 and Mr. Abdul Jalil Zubedi, learned AAG and with their valuable assistance also scanned the record available before us. . ' .

17. Mr. Salahuddin' Khan Gandpur, learned counsel for the Petitioners in CP No.D-3570/2012 [Imtiaz Ali & another v. Province of Sindh through Chief Secretary to Govt of Sindh at Karachi] while, arguing his case forcefully submitted that the Petitioners amongst others were appointed as Deputy District Attorneys [in short D.D.As] in various Districts of Sindh and are performing their duties as Deputy District Attorneys in BPS-18/BPS-19. During the process of their service, the Government of Sindh promulgated Criminal Prosecution Service [Constitution, Functions and Powers] Ordinance, 2006 [hereinafter referred to as the Sindh Ordinance No.XIX - of 2006] whereby, Prosecutor General, Additional Prosecutor General, Deputy District Public, Assistant

District Public Prosecutor and Public Prosecutor were to be appointed. Per learned counsel, preference was to be given by the Government of Sindh to all those District Attorneys [in short D.As] and Deputy District Attorneys [in short D.D.As], who were by that time performing their duties. Per Mr. Salahuddin Khan Gandapur, such preference, no doubt, was to be given without any change in the terms and conditions of their service. The offer for the posts mentioned as above was one time option in terms of proviso to Sub-section 4 of Section 8 of the Sindh Ordinance, 2006 [XIX of 2006] to the persons who already performing functions of Prosecutors on regular basis in the Province.

18. Mr. Salahuddin Khan Gandapur while, arguing his case further submitted that in terms of Sub-section 1 of Section 15 r/w Section 8 of Sindh Criminal Prosecution Service [Constitution, Functions & Powers] Ordinance, 2006 [Sindh Ordinance, 2006], the Government also got published the Sindh Prosecutors [Appointment and Conditions] Rules, 2006 [hereinafter referred to as Rules, 2006] in the Sindh Government Gazette of 7th November, 2006. Pursuant to the Sindh Ordinance, 2006 [Sindh Ordinance No.XIX of 2006], no doubt, option was given to D.As. and D.D.As. who at the relevant time were performing their duties, for. opting the new assignment. Mr. Salahuddin, learned Counsel for the Petitioners further contended that in compliance with Rule 5, the Respondents also constituted a 'Selection Committee', comprising of Administrative Secretary as Chairman and its' Members namely Prosecutor General Sindh, Nominee of Law Department not below the rank of Additional Secretary, Nominee of SGA&CD (Services) not below the rank of. Additional Secretary, and Additional Advocate General to be nominated by the Advocate General Sindh, who were responsible to interview the candidates who had opted to join the prosecution. The 'Selection Committee', after conducting the tests/interviews, prepared and declared the list of SUCCESSFUL CANDIDATES. The names of the Petitioners herein, however, were not included in the list of successful candidates.

19. Mr. Salahuddin Gandapur, further urged that in view of the provisions of Section 8 [4] of the Act, 2009, the Petitioner could not have been put to the tests/interviews afresh, as the Petitioners had already undergone such tests/interviews. Per learned counsel, such drill of tests and interviews much-less from the Petitioners besides, illegal were un-warranted. According to the learned counsel, except to the extent of 'additional allowance'/'privileges' the post of Deputy District Attorneys [existing posts] and the posts of Deputy District Public Prosecutors [newly established posts] are of the same grade i.e. BPS-18. .

20. Mr. Salahuddin Gandapur. learned counsel for the Petitioner in CP No.D-3570/2012, in support of his contentions also referred to the observation of the apex Court made in a common unreported order passed on 3rd September, 2012 in the cases of [i] Syed Munawwar Sultan and 5 others and [ii] Qazi Muhammad Ishaque Chishti and 2 others v. The Province of Sindh in Civil Appeal No. 146 and 147 of 2009 [arising out of CPLA No.365 and 366-K/2009 . respectively]. According to Mr. Salahuddin Gandapur, the Petitioners nonetheless, have been discriminated as the same concession extended to other D.DAs was not given to the Petitioners. Such act of the Respondents is nothing but a clear violation of Article 25 of the Constitution of Islamic Republic of Pakistan, 1973. The relevant observations of the Hon'ble Supreme Court of Pakistan made in the aforesaid cases read as follows:- , , "10. ...appellants have been discriminated against and they are entitled to the benefits of Section 8(4) of the Ordinance of 2006 by which they had right of one time option even if they have failed in the selection by the Board. Had the Secretary. Law and Criminal Prosecution Service not extended the concession of the nature to other PDAs, the Appellants would not have any right to seek relief of the nature. In the given circumstances where the Government and or the Secretary have adopted the policy of pick and choose, we have to intervene to keep balance, for the aforesaid reasons we allow these appeals and set aside the impugned judgments of the Appellants in the manner as has done in the case of the other unsuccessful law officers. " [Underlining is ours]: 2L Per learned counsel for Petitioners in

CP No.D-3570 of 2012, the Petitioners were not only denied /tsuluable benefits of service but also discriminated. Such action/role played by the Respondents, is not only illegal but also without any lawful authority. According to law and constitution, it- is the fundamental right of the Petitioners to be. dealt with equally. By not doing so, the Respondents, no doubt, has violated Article 25 of the Constitution of Islamic Republic of Pakistan, 1973. Lastly, the Petitioners* counsel prayed ibr allowing the petitions.

22. Mr. Abdul Satam' Memon, learned counsel for the Petitioner in CP No.D-3326/2012 [Syed Muzafar Ali Shah v. The Province of Sindh & Ors] while, adopting the arguments of Mr. Salahuddin Khan Gandapur, further contended that the Petitioner was not only denied the valuable benefits of service [i.e. 'additional allowance' and 'privileges'] but also the Petitioner was not treated in accordance with law. The Respondents, per Mr. Abdul Salam, have not only acted against the rules and established norms of justice but have also deprived the Petitioner of his fundamental right of life and liberty. Per Mr. Abdul Salam Memon, it is the vested right of the Petitioner to acquire service benefits like others. The Petitioner in the case in hand, has been discriminated in a clear cut violation of Article 25 of the Constitution of Islamic Republic of Pakistan, 1973. Any sort of discrimination, under law/constitution, per learned counsel, is not permissible rather to say is strictly prohibited.

23. While further arguing the case, learned counsel also quoted the following observations from the order of the Hon'ble Supreme Court of Pakistan passed on 3rd September, 2012 in Civil Appeals No.146-K and 147-K of 2009 [arising out of CPLAs No.365 & 366JC of 2009 respectively] and titled as [i] Syed Munawwar Sultan and Ors v. Province of Sindh & Ors and [ii] Qazi Muhammad Ishaque & others v. Province of Sindh & others [unreported order] wherein the apex court observed and ruled as wider;- ' "JO. ...appellants have beeti discriminated against and they are entitled to the benefits of Section 8(4) of the Ordinance of 2006 by which they had right of one time option even if they have failed in the selection by the Board. Had the Secretary. Law and Criminal Prosecution Service not extended the concession of the nature to other PDAs, the Appellants would not have any right to seek relief of the nature. In the eiven circumstances where the Government and or the Secretary have adopted the policy of pick and choose, we have to intervene to keep balance. For the aforesaid reasons we allow these appeals and set aside the impugned judgments of the Appellants in the manner as has done in the case of the other unsuccessful law officers. " [{Underlining is ours].

24. Learned counsel, further submitted that when the Petitioners came to know about the order of Hon'ble Supreme . Court of Pakistan passed on 3rd September, 2012 in favour of other District Attorneys [not the present Petitioners], the Petitioners herein thereafter preferred their REPRESENTATIONS before the Respondents for giving them equal treatment i.e. their induction in Criminal Prosecution Department in view of the order dated 3rd September, 2012. According to the learned counsel, the case decided by the Hon'ble Supreme Court of Pakistan is identical as such the Petitioners' induction in the Criminal Prosecution Department cannot be denied and/or ignored. The issuance of Notification No.Sth September, 2012 for the induction of other Attorneys [not the Petitioners], per learned counsel, is discriminatory in view of Article 4 and 25 of the Constitution of Islamic Republic of Pakistan, 1973.

25. Besides, both the learned counsel placed reliance on the case of Hameed Akhtar Niazi v. The Secretary Establishment Division, Government of Pakistan & Ors [1996 SCMR 1185] wherein the Hon'ble Supreme Court of Pakistan while, dilating upon the extension of the benefit of a decision, on a law point to others as well has observed as follows

"16. If the Tribunal or this Court decides a point of law relative to the terms of service of a civil servant . which covers not only the case of the civil servant who litigated, but also of other civil

servants, who may have not taken any legal proceedings: in such a case, the dictates of justice and rule of good governance demand that the benefit of the above judgment be extended to other civil servants, who may not be parties to the above litigation instead of compelling them to approach the Tribunal or any other legal forum. ” [Underlining is ours].

26. Heard.

27. Before proceeding farther and with a view to appreciate the 'pro' and 'contra' contentions of the learned counsel for the parties in its true perspective it would be appropriate to reproduce the relevant part of the Notification No.SO(C-I)/SGA&CP/4- 74/2006 dated October 2, 2006 herein as follows:-“GOVERNMENT OF SINDH SERVICES, GENERAL ADMINISTRATION AND CO- ORDINATION DEPARTMENT Karachi, dated the October 2, 2006 NOTIFICATION No.SO(C-I)/SGA&CD/4-74/2006 Government of Sindh is pleased to constitute a Selection Committee to conduct interviews of the persons already performing functions of Prosecutors on regular basis in the Province. In order to determine their eligibility for induction in the Sindh Criminal Prosecution Service in terms of Section -8(4) of Sindh Criminal Prosecution Service [Constitution, Functions & Powers] Ordinance, 2006. Comprising following members:- Chairman 1. Secretary Criminal Prosecution Service Department Member 2. Prosecutor General. Sindh Member 3. Nominee of Law Department not below the rank of Additional Secretary 4. Additional Advocate General to be nominated by the Advocate General Sindh Member 5. Representative of SGA&CD (Services) not below the rank of Additional Secretary * Member 6. Representative of Finance Department not below the rank of Additional Secretary ' Member Terms of Reference a) Interview persons already performing functions of Prosecutors who have furnished options for the newly created Sindh Criminal Prosecution Service.

b) Recommend suitable candidates who have furnished options for Sindh Criminal Prosecution Service and determine the merit of in-service officers for their inter-se-seniority in Sindh Criminal Prosecution Service.

c) Make recommendations to the Government of Sindh for initial appointment of candidates in Sindh Criminal Prosecution Service.

. , Sd-FAZAL-UR-REHMAN .

IEEF SECRETARY SINDH” 28. Pursuant to above Notification, the Petitioners herein without challenging the aforesaid Notification did appear before the 'Selection Committee' and also participated in the interviews/tests but remained unsuccessful. On account of their failure, their names were not included in the list of successful* candidates. Even such decision of the 'Selection Committee' was not challenged before any appropriate forum.

29. Being relevant, Section 8 of the Sindh Criminal Prosecution Service [Constitution, Functions & Powers] Ordinance, 2006 [Sindh Ordinance XIX, 2006] is reproduced here-in-below:- “8. Appointments.-(1) Government may appoint Additional Prosecutors-General and Deputy Prosecutors-General to conduct criminal cases in the Supreme Court, the High Court, the Federal Shariat Court or any other Special Court.

(2) Government shall appoint a District Public Prosecutor in each district who shall be the officer incharge of the prosecution in the district within the meanings of the Code.

(3) All the appointments, except that of the Prosecutor General, to various posts in the Service, shall be made through initial recruitment in the manner as may be prescribed: , Provided that at least fifty per cent appointments on the posts of Additional Prosecutors-General and Deputy

Prosecutors- General shall be made through promotion. \ (4) No direct recruitment shall be made on regular basis to the posts of District Public Prosecutor, Deputy District Public Prosecutor, Assistant District Prosecutor, Additional Prosecutor-General and Deputy Prosecutor General except on the recommendation of Sindh Public Service Commission: Provided that the Government shall, by a special order, invite 'one time options from the persons already performing functions of Prosecutors on regular basis in the Province and may induct them in the Service upon such terms and conditions which are not detrimental to their existing terms and conditions of service. [Underlining is ours].

X (5) The promotion or transfer in the Service shall be made in the manner as may be prescribed. " 30. As appears, the Government of Sindh promulgated Sindh Criminal Prosecution Services [Constitution, Functions & Powers] Ordinance, 2006 [Sindh Ordinance XIX, 2006] published in the Sindh Government Gazette 29.07.2006. In terms thereof, District Prosecutor, District Public Prosecutor. General, Deputy District Public Prosecutors, Assistant District Prosecutor, Additional Prosecutor General and Deputy Prosecutor General were to be appointed in the prescribed manner. Under the proviso to Subsection 4 of Section 8 of the Ordinance* 2006 [Sindh Ordinance No.XDC of 2006] Government was required to invite one time option from the persons already performing function of Prosecutors on 'regular basis' in the Province and may induct them in the service upon such terms and conditions which are not detrimental to their existing terms and conditions of service. For achieving the purpose effectively, the Government by virtue of provisions of Ordinance, 2006 also got published Sindh Prosecutor Appointment and Conditions of Service] Rules, 2007 [hereinafter referred to as the Rules of 2006] in Sindh Gazette dated 7th November, 2006, ' .

31. It is significant to note that the aforesaid Ordinance [Sindh * Ordinance No.XIX of 2006] was not tabled before the Assembly as such, the same was got lapse on 28.10.2006. The Government, however, seemingly in violation of law and colourful exercise of powers, time and again re-promulgated Ordinance of 2006 as Ordinance III of 2007 on 13.02.2007, Ordinance VIII of 2007 on 18.05.2007 and Ordinance XIX of 2007 on 17.08.2007.

32. Nevertheless, pursuant to Ordinance of 2006 [Sindh Ordinance No.XIX of 2006], the DAs and DDAs already performing their duties while exercising their one time option in terms of Sub-section 4 of Section 8 *ibid*, did appear before the 'Selection Committee', comprising of Secretary Criminal Prosecution. Service Department as Chairman, its member *viz.* Prosecutor General Sindh, Nominee of law department not below the rank of Additional Secretary, the Nominee of SGA &CD [Services] not below the rank of Additional Secretary, Representative of Finance Department not below the rank of - Additional Secretary and the Additional Advocate General to be nominated by Advocate General was constituted. Thereafter the Selection Committee' interviewed the DAs and DDAs already opted for joining the Prosecution Services, Upon their tests/interviews, list of successful incumbents [not the Petitioners] . was prepared. It is significant to note that the present Petitioners in their own wisdom did not challenge the decision of the 'Selection Committee' before any appropriate forum.

33. On account of non-inclusion the names of un-successful candidates/law officers, some of the un-successful candidates/participants [not the present Petitioners] filed Constitution Petitions before this court. During the hearing of petitions, the Secretary of Prosecution Branch, appeared before the court and conceded the induction of the Petitioners and other Law Officer before the court. In view of such concession some of the Petitioners were inducted, however, in the case of some of the Petitioners who had filed Constitution Petitions before the High Court [not the Petitioners], the same concession given by the Secretary Prosecution, was not extended to them. Consequently, the other set of petitions were dismissed in *limine vide* Judgment dated March, 2009. * 34. Some of the relevant portions of un-reported order dated 3rd September,

2012 passed by Hon'ble Supreme Court of Pakistan being relevant for the purpose of the decision of the present petitions are reproduced hereinbelow:- "4. ...The unsuccessful candidates/law officers filed Petitions before the Sindh High Court. During the hearing of the Petitions filed by other law officers the Secretary of Prosecution Branch conceded their induction and the law officers were inducted as such. However, in the cases of the Appellants no such concession was extended and their Petitions were dismissed through impugned Judgment. [Underlining is ours].

7. ...These proceedings can be decided on the short point of the discrimination meted out to the Appellants under Article 25 of the Constitution where the Appellants were singled out by Secretary, Law and Criminal Prosecution Service, extending concession to other DDAs/law officers performing identical duties by inducting them as Deputy Prosecutors. It is not disputed by the Incharge Secretary, Law and Criminal Prosecution Service, present in Court, that a Selection Committee/Board was constituted, which interviewed all the Deputy District Attorneys who opted for Prosecution Branch in terms of Section 8(4) of the Ordinance 2006. Admittedly, after the interview by the Board, many DDAs were not selected as Deputy Prosecutor General.

Mam of them, who were declared failed by the Board filed Petitions in the Sindh High Court. During hearing of some of these petitions the Secretary, Law and Criminal Prosecution Service appeared and consented to their induction. The Incharge Secretary, Law and Criminal Prosecution Service, conceded that this concession of the Secretary was not based on any yardstick except that it was a bona fide concession.... [Underlining is ours]. - .

8. ...Prima facie, the then Secretary, Law and Criminal Prosecution Service has extended concession to the law officers after they were declared unsuccessful by the Selection Committee/Board. Apparently, such concession was not concession eranted bv the Government as. under the Rides of Business, the Secretary Law and Criminal Prosecution Service is not the government.

However, the Judgment passed by the High Court on such concession was not appealed against by the Sindh Government, which implies that this concession has been extended by the Secretary Law on the instructions of the Sindh Government. The case of the Appellants stands on the same pedestal as they were also not selected by the Selection Board, constituted after the exercise of one time option by the Appellants for appointment as Deputy Prosecutor General. The Appellants were also performing same duties as that of those who were failed and were inducted on concession. Therefore, in all fairness, the Appellants were also entitled to the induction. " [Underlining is ours]'. ' 35. - From perusal of the above, it appears that other group of Petitioners was before the High Court but the concession given to another group/class of the Petitioners, was not extended to the second group/class of Petitioners and resultantly their petitions thereafter, were dismissed in limine, 36, . As far as the present Petitioners [in the instant petitions] are concerned, evidently, these Petitioners did not challenge the exclusion of their names from the list of successful candidates ' and/or the Notification NO.SO(C-I)/SGA&CD/4-47/2006 dated 2nd October, 2006, The Petitioners herein, however, on the strength and basis of the order passed by Hon'ble Supreme Court order dated-3rd September, 2012, in Civil Appeals No. 146 and 147-K of 2009 [arising out of CPLAs No.365 and 366-K of 2009], have approached this court for seeking equal treatment/their induction in the Criminal Prosecution Department.

37. Besides, reliance has also been placed on Article 25 of the Constitution of Islamic Republic of Pakistan, 1973 which reads as follows: .

"25. Equality of citizens.-(I) All citizens are equal before law and are entitled to equal protection of law.

' ' 7 (2) There shall be no discrimination on the basis of sex alone.

(3) Nothing in this Article shall prevent the State from making any special provision for the protection of women and children. ' 38: Manifestly, the case of the present Petitioners does not fell within the four corners of Article 25 of Constitution of Islamic Republic of Pakistan, 1973 as the present Petitioners had not questioned the decision of the Selection Committee. In view of this position the present Petitioners have not been discriminated as alleged. Even the Notification No.SO(C-I)SGA&CD/4-47/2(K)6 has not. been challenged or otherwise declared as void or of no legal effect. . .

39. So also Article 4 of the Constitution of Islamic Republic of Pakistan, 1973 being relevant is also reproduced here-in-below:- "4. Right of individuals to be dealt with in accordance with law, etc.-(I) To enjoy the protection of law and to be treated in accordance with law in the inalienable right of every citizen, wherever he may be, and of every other: person for the time being within Pakistan.

(2) In particular- (a) no action detrimental to the life, liberty, body, reputation or property of any person shall be taken except in accordance with law; (b) no person shall be prevented from or be hindered in doing that which is not prohibited by law; and (c) no person shall be compelled to do that which the law does not require him to do. " 40. No doubt, under Article 4 of the Constitution of Islamic Republic of Pakistan, every individual is to be treated in accordance with law but this Article does not give license to the law breakers or the persons who act not in accordance with law but keep themselves busy in getting a relief otherwise than in accordance with law and Notifications and that too without challenging their validity as the case in hand is. It is worth to note that Notifications and Circulars being a subordinate legislature also fall within the ambit of law. The Petitioners have been dealt with in accordance with law that prevailed at the relevant time. As such allegation of any sort of discrimination or in-equal treatment as alleged besides mis-leading is mis-conceived. , 41. Moreover, upon repeal of the earlier Ordinances, the Sindh Criminal Prosecution Service [Constitution, Functions & Powers] Act, 2009 [Sindh Act No.IX of 2010] was promulgated and notified on 30th April, 2010. Section 2(I)(k)&(I) of the said Act defines 'Prosecution and 'Prosecutors' as under:- "2. Definitions.-(1) In this Act, unless the subject or context otherwise requires:* (k) "Prosecution" means the prosecution of a criminal case; (I) "Prosecutor" means the Prosecutor-General, Additional Prosecutor-General, Deputy Prosecutor-General, Assistant Prosecutor General, District Public Prosecutor, Deputy District Public Prosecutor, Assistant District Public Prosecutor and a Public Prosecutor appointed under this Act and shall be deemed to be the Public Prosecutor under the Code; " 42. For ready reference *and convenience purpose Section 8 of Act, 2009 [Sindh Act No.IX of 2010] is also reproduced herein as follows:-

"8, Appointments.-(1) Government may appoint any Prosecutors to conduct criminal cases in the High Court, Federal Shariat Court and Supreme Court or any other Special Court.

(2) Government shall appoint a District Public Prosecutor in eaQh district, who shall be Officer Incharge of the Prosecution in the district within the meanings of the Code.

(3) All the appointments, except that of the Prosecutor General, to various posts in the Service, shall be made through initial recruitment in the manner as may be prescribed: . ' * .

Provided that, after initial recruitment, fifty percent of vacancies occurring on the post of Additional Prosecutor General, Deputy Prosecutor General, Assistant Prosecutor General, District Public Prosecutor and Deputy District Public Prosecutor shall be filled through promotion.

' (4) No direct recruitment shall be made on regular basis to the posts of District Public Prosecutor, Deputy District Public Prosecutor, Assistant District Public Prosecutor, Additional Prosecutor General and Deputy Prosecutor General and Assistant Prosecutor General except on the recommendation of Sindh Public Service Commission; Provided that on commencement of this Act, the persons already performing functions of prosecution on regular basis in the Province, shall continue as such. " 43. Under the new Act, 2009 [Sindh Act IX of 2010] no one time option is available. Rules 3&9 of the Sindh Prosecutors [Appointments & Conditions of Service] Rules 2006 pertaining to the appointment, promotion and transfer of Prosecutors read as follows;- .

"3, Appointment and promotion of Prosecutors.- (1) The appointment of Additional Prosecutor General, Deputy. Prosecutor General, District Public Prosecutor, Deputy District Public Prosecutor and Assistant District Public Prosecutor shall be made by Government- (i) by initial appointment on regular basis on the recommendation of the Commission or on contract basis for a non- extendable period of three years on the recommendations of the Selection Committee; (ii) by promotion or transfer In accordance with their respective recruitment rules.

(2) Government may, from time to time prescribed the quota for initial appointment and promotion." "9. Appointment by promotion / transfer.- (1) Person as possess the qualifications and meet the conditions laid down for the purpose of promotion to .a post shall be considered by the Departmental Promotion Committee or Selection Board, as the case may be. .

(2) , No Promotion on regulation basis shall be made to posts in basic pay scales 17 to 20 unless the officer concerned has completed such minimum length of service, attached such training and passed such departmental examination, as may be prescribed from time to time.

(3) Promotions to posts in basic pay scale 2 to 18 shall be made on the recommendations of the appropriate Departmental Promotion Committee and promotions to posts in basic pay scales 19 and 20 shall be made on the recommendations of the Selection Board.

(4) Where the appointing authority considers it to be in the public interest to fill a post reserved under these rules for promotion and the most senior officer belonging to service who is otherwise eligible for promotion does not possess the specified length of service the authority may appoint him to,that post on acting charge basis.

(5) In the case of a post in basic pay scale 17 to 20 reserved to be filled by initial appointment, where the appointing authority is satisfied that no suitable officer in which the post exist is available in that category to fill the post and it is expedient to fill the post, it may appoint to that post on the acting charge basis the most senior officer otherwise eligible for promotion in the service, in excess of the promotion quota: * (6) Acting charge appointment shall be made against the posts which are likely to fall vacant for a period of six months or more and against the vacancies occurring for less than six months, current charge appointment may be made according to the orders issued from time to time.

(7) Appointment on acting charge basis shall be made on the recommendations of the Departmental Promotion Committee or the Selection Board as the case may be.

(8) Acting Charge "Appointment shall not amount to appointment by promotion on regular basis for any purpose including seniority.

(9) ; Acting charge Appointment shall not confer any vested right or regular promotion to the post held on acting charge basis. " 44, A complete mechanism under the aforesaid law and rules has

been provided which needs to be followed strictly. The Petitioners in their own wisdom nonetheless, did not file any petition(s) against non-inclusion of their names in the merit list and the decision of the 'Selection Committee' was also never challenged by the present Petitioners. The contention of the present Petitioners is that the tests/interview cannot be taken from the Petitioner afresh besides misconceived is without any force.

45. Learned AAG, under the aforesaid scenario, has rightly argued that the one time option given to the candidates already performing functions in the field as Prosecutors was 'conditional' and subject to passing of the tests/interviews as had been notified on 2nd October, 2006. Being relevant at this stage, the declaration regarding one time option given by Prosecutors is reproduced herein as follows:- "Declaration.-1 hereby affirm on oath that the information given above is true and correct to my knowledge and I shall be personally responsible for any mistakes or misinformation, and the Sindh Criminal Prosecution Service Department will be free to proceed against me under the Sindh Removal from Service Ordinance for any misstatement on my part in concealing any information pertaining to the above. Further the decision of the Selection Committee shall be final and acceptable to me.

I hereby give my option to join the Sindh Criminal Prosecution Service Department as provided in section 8(4) of the Sindh Criminal Prosecution Service (Constitution, Powers and Functions) Ordinance, 2007 and letter No.----dated-----of the Criminal Prosecution Service Department." [Underlining is ours].

46. No doubt, the Petitioners did appear before the Selection Committee but they failed as such were declared un-successful by the Selection Committee. Such decision of the Selection Committee was never challenged by the present Petitioners. In view of this position the Petitioners were not appointed as D.P.Ps. and D.D.P.Ps. The pleas and grounds taken by the Petitioners are superfluous thus merits no consideration. So also the case of the Petitioner under the facts and circumstances of the case, is not covered by the order dated 3rd September, 2012 passed by the Hon'ble Supreme Court of Pakistan in Civil Appeals No.146-K and 147-K of 2009 [arising out of CPLA No.365-k AND 366-k OF 2009], as the said order was passed manifestly on the basis of undertaking/concession given by the Law Secretary, Law and Criminal Prosecution Service, For ready reference some of the relevant portions of the order dated 3rd September, 2012 [unreported] are reproduced as follows:- "7. During hearing of some of these petitions the Secretary, Law and Criminal Prosecution Service appeared and consented to their induction. The Incharge Secretary, Law and Criminal Prosecution Service, conceded that this concession of the Secretary was not based on any yardstick except that it was a bonafide concession...

8. ...However, the Judgment passed by the High Court on such concession was not appealed against by the Sindh Government, which implies that this concession has been extended by the Secretary Law on the instructions of the Sindh Government. The case of the Appellants stands on the same pedestal as they were also not selected by the Selection Board, constituted after the exercise of one time option by the Appellants for appointment as Deputy Prosecutor General. The Appellants were also performing same duties as that of those who were failed and were inducted on concession. Therefore, in all fairness, the Appellants were also entitled to the induction."

47. . In terms of the above order the benefit of concession was extended only to those Petitioners who were before the High Court but their petitions were dismissed in limine; Needless to say, the appointments of D.As. and D.D.As. as DIPP's and DDPP's was subject to the scrutiny by Selection Committee, The Selection Committee, was formed by the government under Rule 5 of the Rules 2006. After the formation of the Selection Committee, the candidates who had opted for the post of DPP's and DDPP's did appear before the Selection Committee but some of them

remained un-successful, The present Petitioners, also appeared before the Selection Committee but remained un-successful, however, they did not file any petition regarding redressal of their grievance.

48. The said Ordinance 2006 [Sindh Ordinance No.XIX of 2006] and rules made thereunder provide a full mechanism viz-a-viz the appointments, promotions and transfer of the Prosecutors. The one time option allowed by the government for their absorption in the prosecution department, of course, was conditional and subject to their passing in the tests/interviews. His decision of Selection Committee, as far as the present Petitioner, are concerned, in my view, is binding on the Petitioners as it was not challenged by any of the present Petitioners before any forum.

49. Moreover, the 1st part of sub-section 4 of Section 8 of the Sindh Criminal Prosecution Service [Constitution, Functions & Powers] Ordinance' 2006 [Sindh Ordinance XIX of 2006] is mandatory and the 2nd part of the said sub-section is directory. For better understanding the same has been split up in two parts as under; ' ' '(i) that the Government shall, by a special order, invite one time option from one person already performing functions of prosecutors on mgwar bask in the Province and (it) may induct them in the service upon such terms and conditions which are not detrimental to their existing terms and conditions of service.' 50. Manifestly, the first part of this proviso relates to the inviting of one time option is mandatory -account of using the word 'shall', whereas, under second part of the said proviso, a discretion has been given to/vested in the government, regarding inviting of one time option from the persons already performing functions of the prosecutors. In terms of the 2 part of the proviso, the Government may induct persons, in service, however, upon such terms and conditions that are not detrimental to their existing terms and conditions of service. The word 'shall' as used by legislation in the first part of proviso to sub-section 4 of Section 8 is mandatory as far as inviting of one time option is concerned, however, the 2nd part of the proviso which relates to induction in service is directory and not mandatory because of use of the word 'may' in the 2nd part of the said proviso to Section 8 of the Sindh Ordinance, XIX of 2006.

51. Since the Sindh Criminal Prosecution Service [Constitution, Functions & Powers] Ordinance, 2006 [Sindh Ordinance No.XIX of 2006] as well as the re-promulgated Ordinances i.e. Ordinance 111 of 2007, Ordinance VIII of 2007 and Ordinance XIX of 2007 have already been repealed on 28.10.2006, 13.02.2007, 18.05.2007 and 18.05.2007 respectively as such, now the Petitioners or any of them are/is not entitled for any relief thereunder as the Petitioners have failed to file any petition during the validity period of such Ordinances. Besides, the Petitioners' case is not covered by the Order dated 3rd September, 2012 passed by Hon'ble Supreme Court of Pakistan as the said order was apparently based on the concession extended/given by Secretary, Law and Criminal Prosecution Service to some of the Petitioners in their then pending petitions.

52. The other Petitioners to whom such concession was not extended, upon dismissal of their petitions from High Court, got the same relief from Hon'ble Supreme Court of Pakistan obviously on the basis of the concession already extended to some of the Petitioners by the High Court on the touchstone of Article 25 of the Constitution of Islamic Republic of Pakistan, 1973. Such concession, however, as far as the present Petitioners are concerned, cannot be extended to them as none of them filed any petition against the decision of the 'Selection Committee' or otherwise challenged the Notification No.SO(C-I)/SGA&CD/4- 74/2006 dated October 2, 2006. Under these circumstances, the subsequent Notification No.SO(G)/CPS/3-48/07 dated September 13, 2012 [Annexure 'D' to the MoP] issued by the competent authority pursuant to the order dated 03.09.2012 passed by the Hon'ble Supreme Court of Pakistan cannot be termed and/or declared as discriminatory.

53. For the foregoing reasons, the above petitions are without any substance, therefore, the same are dismissed, however, with no order as to costs.

Petition dismissed.

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